

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.1652	0.1606	0.0096	0.2569	0.1205
Trial Fee-Shifting	0.1647	0.1499	0.0175	0.2573	0.1060

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.1808	0.1468	0.0099	0.2689	0.1067
Trial Fee-Shifting	0.1661	0.1453	0.0086	0.2592	0.0912